PeriGen Privacy and Security Policy Statement

	HIPAA Security	Procedure No.: 27
Title: Security Incident Procedures	Revision 1.0	Effective Date

HIPAA Security Rule Language: "Implement policies and procedures to address security incidents." 45 CFR §164.308(a)(6)(i).

"Identify and respond to suspected or known security incidents; mitigate, to the extent practicable, harmful effects of security incidents that are known to the covered entity…and document security incidents and their outcomes." 45 CFR §164.308(a)(6)(ii).

Purpose Statement: Despite taking all reasonable and appropriate steps to protect the confidentiality, integrity and availability of ePHI, Perigen may experience Security Incidents. Perigen will promptly identify, report, track, and respond to Security Incidents. Awareness of, response to, and creation of reports about Security Incidents are integral parts of Perigen's efforts to comply with the HIPAA Security Regulations.

Policy/Procedure:

SECURITY INCIDENTS

1. A "Security Incident" is defined as the attempted or successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in an ePHI System.
2. The following incidents are examples of potential Security Incidents. This list is not exclusive. The Privacy & Security Officer will determine when a Security Incident has occurred.
   a. Stolen or otherwise inappropriately obtained passwords that are used to access ePHI or Perigen's ePHI Systems;
   b. Corrupted backup tapes that do not allow restoration of ePHI;
   c. Virus attacks that interfere with the operations of Perigen's ePHI Systems;
   d. Physical break-ins to Perigen's facilities that may lead to the theft of electronic media containing ePHI;
   e. Perigen's failure to terminate the account of a former Workforce Member that is then used by an unauthorized individual to access ePHI Systems; and/or
   f. Allowing electronic media containing ePHI, such as a computer hard drive or laptop, to be accessed by a Workforce Member who is not authorized to access such ePHI prior to removing the ePHI stored on the media.

REPORTING SECURITY INCIDENTS

1. Any Workforce Member, including Perigen management must report any potential Security Incident that he or she discovers, or any other potential threat to the confidentiality, integrity, or availability of ePHI, to the Privacy & Security Officer immediately upon discovery of the potential Security Incident or threat.
2. The Workforce Member may provide notice of the occurrence of a potential Security Incident in any format, including in writing, electronically, or orally.
3. The Privacy & Security Officer will document the report of a potential Security Incident or threat from the Workforce Member along with the date and time that he or she was notified of such event.
4. Perigen will not take any retaliatory measures against a Workforce Member who reports a potential Security Incident or threat. If the Security Incident was created by the neglect, or deliberate action, of a Workforce Member, then Perigen may impose sanctions as set forth in other Policies.
5. No Workforce Member will prohibit or otherwise attempt to hinder or prevent another Workforce Member from reporting a potential Security Incident or threat.

RESPONSE TO SECURITY INCIDENTS

1. Upon becoming aware of a potential or suspected Security Incident, the Privacy & Security Officer will immediately notify Perigen senior management and legal counsel.
2. If the potential Security Incident involves ePHI or ePHI Systems that Perigen received access to as a Business Associate of a Covered Entity, legal counsel will review the applicable Business Associate Agreement to determine whether and how the potential Security Incident should be reported to the Covered Entity. Legal counsel will also determine whether any additional notifications are required pursuant to applicable breach notification laws.
3. In consultation with legal counsel and Perigen senior management, the Privacy & Security Officer will promptly conduct an initial review of the facts surrounding the potential Security Incident to determine whether a Security Incident occurred and, if so, the scope, magnitude and severity of the Security Incident; mechanisms for mitigating the harmful effects of the Security Incident; and, ways to remediate the vulnerability that lead to the Security Incident. The Privacy & Security Officer will present his or her initial findings to Perigen senior management within 24 hours of becoming aware of the potential Security Incident and will update those findings as more information becomes available.
4. If the Privacy & Security Officer determines that no Security Incident has occurred, the Privacy & Security Officer will document this in a report along with all of the information that supports such conclusion and no further investigations or procedures are required.
5. If the Privacy & Security Officer determines that a Security Incident has occurred, he or she will consult outside counsel to review the initial report to Perigen senior management and develop a risk management plan that sufficiently responds to the Security Incident.

6. The Privacy & Security Officer and outside counsel must analyze the Security Incident and deliver a response and recommendations to Perigen senior management within a reasonable time after being convened, but no longer than five (5) days after the date that the Privacy & Security Officer learns of the Security Incident. The response and recommendations must address the cause of the Security Incident, mechanisms for mitigating the harmful effects of the Security Incident, and ways to remediate the vulnerability that lead to the Security Incident
7. The Privacy & Security Officer will retain all documentation regarding the Security Incident in accordance with the Perigen's Retention Policy.

OTHER MEASURES REGARDING SECURITY INCIDENTS

1. Perigen will provide training and awareness materials to its Workforce Members, as appropriate, regarding the process for promptly identifying, reporting, tracking, and responding to Security Incidents in accordance with this Policy.
2. Perigen will work with appropriate third-parties to provide on-going support in the event of a cybersecurity incident response.
3. As deemed necessary by the Privacy & Security Officer, Perigen will impose sanctions, including termination, in accordance with the Workforce Member Discipline Policy against Workforce Members whose actions lead to or cause Security Incidents.

Responsibility: Privacy & Security Officer,

Definitions: Security Incident; Workforce Member; ePHI; ePHI System.

Regulatory Reference:

- ♦ 45 C.F.R. §164.308(a)(6)(i), Security Incident Procedures [Standard; Required]
- ♦ 45 C.F.R. §164.308(a)(6)(ii), Response and Reporting (of Security Incidents) [Implementation Specification; Required]

Perigen

Security Incident Procedure Flowchart Modeled and Security Incident Procedures

---

Security Incident: the attempted or successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in an ePHI System.

Step 1: All Workforce Members must report any potential Security Incident or any other potential threat to the confidentiality, integrity, or availability of ePHI, to the Privacy & Security Officer supervisor immediately upon discovery of the potential Security Incident or threat. This notice can be in any format.

Step 2: The Privacy & Security Officer will document the report of a potential Security Incident or threat from the Workforce member along with the date and time that he or she was notified of such event.

Step 3: If the supervisor is notified before the Privacy & Security Officer, the supervisor will notify the Privacy & Security Officer. Once the Privacy & Security Officer is notified, he or she will notify senior management (the Management Committee) and legal counsel.

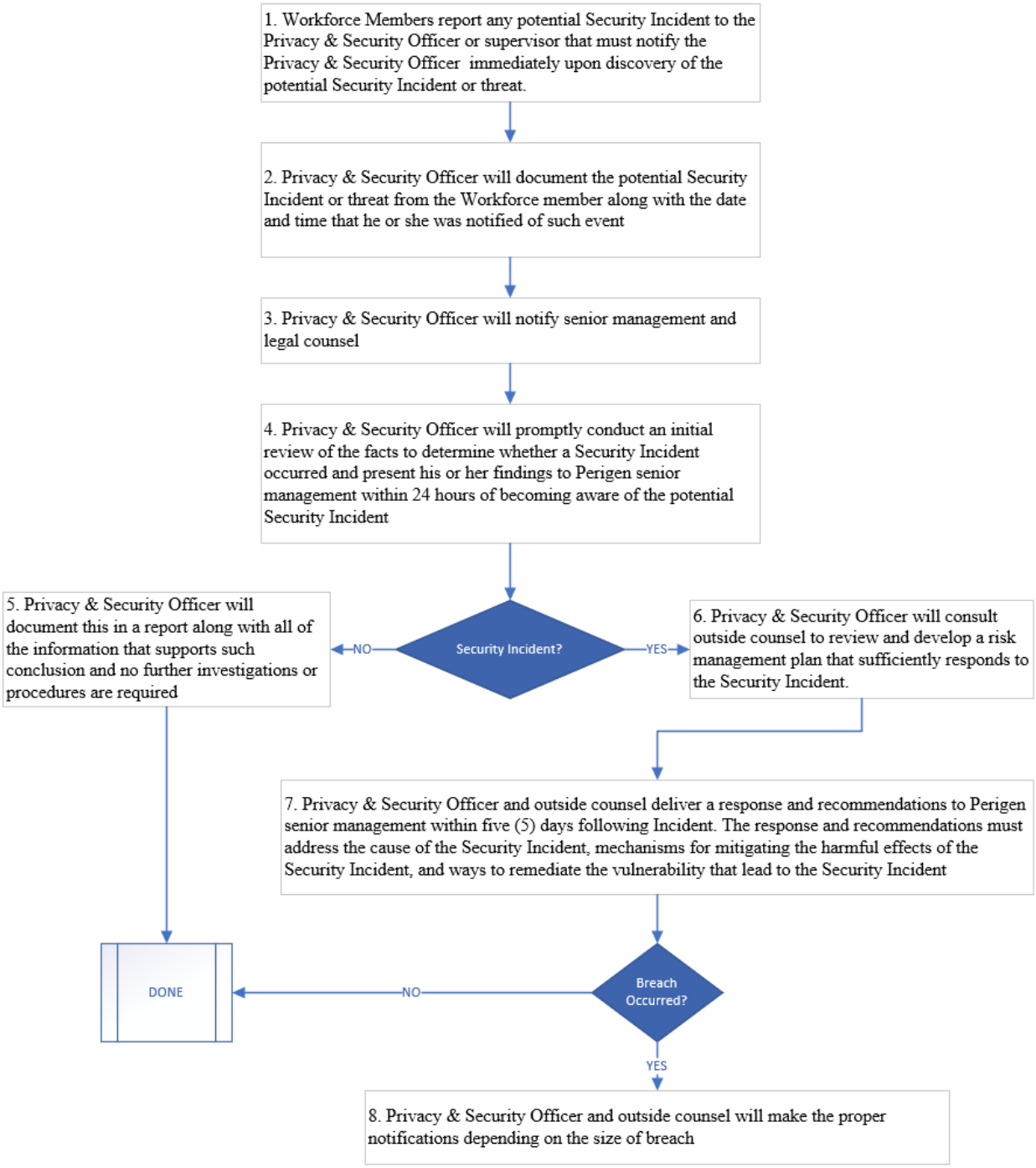
Step 4: In consultation with legal counsel and Perigen senior management, the Privacy & Security Officer will promptly conduct an initial review of the facts surrounding the potential Security Incident to determine whether a Security Incident occurred and, if so, the scope, magnitude and severity of the Security Incident; mechanisms for mitigating the harmful effects of the Security Incident; and, ways to remediate the vulnerability that lead to the Security Incident. The Privacy & Security Officer will present his or her initial findings to Perigen senior management within 24 hours of becoming aware of the potential Security Incident and will update those findings as more information becomes available.

Step 5:
If the Privacy & Security Officer determines that no Security Incident has occurred, the Privacy & Security Officer will document this in a report along with all of the information that supports such conclusion and no further investigations or procedures are required.

Step 6:
If the Privacy & Security Officer determines that a Security Incident has occurred, he or she will consult outside counsel to review the Privacy & Security Officer's initial report to Perigen senior management and develop a risk management plan that sufficiently responds to the Security Incident.

Step 7:
The Privacy & Security Officer and outside counsel must analyze the Security Incident and deliver a response and recommendations to Perigen senior management within a reasonable time after being convened, but no longer than five (5) days after the date that the Privacy & Security Officer learns of the Security Incident. The response and recommendations must address the cause of the Security Incident, mechanisms for mitigating the harmful effects of the Security Incident, and ways to remediate the vulnerability that lead to the Security Incident

Step 8: If the Privacy & Security Officer and outside counsel determine that a breach has occurred, the Privacy & Security Officer and outside counsel will make the proper notifications depending on the size of the breach. (See http://www.hhs.gov/hipaa/for-professionals/breach-notification/)


1. Workforce Members report any potential Security Incident to the Privacy & Security Officer or supervisor that must notify the Privacy & Security Officer immediately upon discovery of the potential Security Incident or threat.
2. Privacy & Security Officer will document the potential Security Incident or threat from the Workforce member along with the date and time that he or she was notified of such event
3. Privacy & Security Officer will notify senior management and legal counsel
4. Privacy & Security Officer will promptly conduct an initial review of the facts to determine whether a Security Incident occurred and present his or her findings to Perigen senior management within 24 hours of becoming aware of the potential Security Incident
Security Incident?
NO
5. Privacy & Security Officer will document this in a report along with all of the information that supports such conclusion and no further investigations or procedures are required
YES
6. Privacy & Security Officer will consult outside counsel to review and develop a risk management plan that sufficiently responds to the Security Incident.
7. Privacy & Security Officer and outside counsel deliver a response and recommendations to Perigen senior management within five (5) days following Incident. The response and recommendations must address the cause of the Security Incident, mechanisms for mitigating the harmful effects of the Security Incident, and ways to remediate the vulnerability that lead to the Security Incident
Breach Occurred?
NO
DONE
YES
8. Privacy & Security Officer and outside counsel will make the proper notifications depending on the size of breach